

TENTATIVE RULINGS FOR DEPT. S36
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

COMMUNITY HOUSING GROUP LLC, et al.,

Petitioners,

v.

THE CITY OF GRAND TERRACE,

Respondents.

Case No.: CIVSB2527185

**[TENTATIVE] ORDER DENYING
PETITION FOR WRIT OF
MANDATE FILED BY
PETITIONER COMMUNITY
HOUSING GROUP**

I. INTRODUCTION

On September 25, 2025, Petitioners Community Housing Group LLC, Grand Terrace Community Housing Group LLC, 21600 LLC, and 12466 Michigan LLC filed a Petition for Writ of Mandate and Complaint against Defendant, The City of Grand Terrace.

Petitioners allege the following 18 causes of action:

1. Writ of Mandate – Housing Element
2. Writ of Mandate – 21600 Project – SB330 Preliminary Application
3. Writ of Mandate – Michigan Project – SB330 Preliminary Application

4. Writ of Mandate – 21600 Project – Full Planning Application
5. Writ of Mandate – Michigan Project – Full Planning Application
6. Writ of Mandate – 21600 Project – Failure to Comply with Administrative

Procedures by The City of Grand Terrace

7. Writ of Mandate – Michigan Project – Failure to Comply with Administrative

Procedures by The City of Grand Terrace

8. Violations of The Housing Accountability Act, Housing Crisis Act, and Permit Streamlining Act – 21600 Project

9. Violations of The Housing Accountability Act, Housing Crisis Act, and Permit Streamlining Act – Michigan Project

10. Declaratory Relief – Housing Element

11. Declaratory Relief – 21600 Project – SB330 Preliminary Application

12. Declaratory Relief – Michigan Project – SB330 Preliminary Application

13. Declaratory Relief – 21600 Project – Full Planning Application

14. Declaratory Relief – Michigan Project - Full Planning Application

15. Declaratory Relief – 21600 Project – Waiver of Administrative Procedures by The City of Grand Terrace

16. Declaratory Relief – Michigan Project - Waiver of Administrative Procedures by The City of Grand Terrace

17. Public Records Act

18. Declaratory Relief

This dispute concerns two specific projects: the 21600 Project and the Michigan Project, for which Petitioners maintain they submitted SB330 Preliminary Applications, full Planning

Applications, and that in light of the City's out of compliance Housing Element, the Builder's Remedy applies. The City maintains that the applications submitted were incomplete, and therefore, the Builder's Remedy does not apply.

II. BACKGROUND

A. Legal Background

1. The Housing Accountability Act (HAA).

"California has a housing supply and affordability crisis of historic proportions. [Citation.] This 'despite the fact that, for decades, the Legislature has enacted numerous statutes intended to significantly increase the approval, development, and affordability of housing for all income levels.' [Citation.] Among these statutes is the Housing Accountability Act (HAA) (Gov. Code, § 65589.5), enacted in 1982 with the goal of 'meaningfully and effectively curbing the capability of local governments to deny, reduce the density for, or render infeasible housing development projects.'" (*California Renters Legal Advocacy & Education Fund v. City of San Mateo* (2021) 68 Cal.App.5th 820, 830–31 (*California Renters*).)

2. The Housing Crisis Act (HCA).

"The Housing Crisis Act of 2019 (the Act), codified at Government Code section 66300 *et seq.*, is among the measures that the California Legislature has adopted to address the state's housing shortage." (*Yes in My Back Yard v. City of Culver City* (2023) 96 Cal.App.5th 1103, 1109, footnote omitted.) "In response to California's housing crisis, the Legislature adopted the Act, effective January 1, 2020. (Stats. 2019, ch. 654, § 13 (Sen. Bill No. 330).) The Legislature declared that the housing crisis was harming families in numerous ways, including increasing poverty and homelessness, driving families out of the state, and forcing lower-income residents into crowded and unsafe housing. (*Ibid.*)" (*Id.* at p. 1113.)

3. The Permit Streamlining Act (PSA).

“The Act was enacted in 1977, when the California Legislature added chapter 4.5, entitled “Review and Approval of Development Projects,” to the Government Code, commencing with section 65920. The Act’s purpose is to “ensure clear understanding of the specific requirements which must be met in connection with the approval of development projects and to expedite decisions on such projects.” (§ 65921.)” (*Mahon v. County of San Mateo* (2006) 139 Cal.App.4th 812, 817–18, citations omitted.) “To encourage prompt resolution of permit applications, the Act provides that an application will be deemed approved if not acted upon within the statutory time period.” (*Id.* at p. 818.)

4. The Builder’s Remedy, the HAA, and the Housing Element Law.

“Like other local governments, the City must adopt comprehensive, long-term plans for development within its jurisdiction. Under the Housing Element Law (Gov. Code, §§ 65580–65588), the City’s general plan must contain a variety of “housing elements” to address its regional housing needs.” (*New Commune DTLA LLC v. City of Redondo Beach* (2026) 122 Cal.App.5th 99, citations omitted.) “When a local government fails to obtain an HCD-certified housing element in a timely fashion, the HAA severely constrains its ability to reject any builder’s remedy project that proposes affordable housing, even if that project conflicts with local zoning and general plan standards.” (*Ibid.*) “During this period of HAA noncompliance, the local government may not disapprove such project without making specific written findings.” (*Ibid.*)

B. Factual Background

1. The 21600 Project

Petitioners' 21600 Project is a 115-unit mobile home park proposed for 21600 Walnut Avenue in Grand Terrace, California. It includes at least 20% low-income units. (AR 130-AR 131.)

2. The Michigan Project

Petitioners' Michigan Project is a 30-unit mobile home park to be located at 12466 Michigan Street in Grand Terrace, California. It also includes at least 20% low-income units. (AR 014-AR 021.)

3. The SB330 Preliminary Applications

On December 26, 2024, Petitioners submitted SB330 Preliminary Applications for both projects via email and US Mail. (See AR 014-AR 021; Michigan Project Application; SAR 003-015; 21600 Project Application.) The City acknowledged receipt of the Applications on January 7, 2025. (AR 072, AR 131.)

4. The Full Planning Applications

On June 6, 2025, Petitioners submitted their full Planning Entitlement Applications for both projects via email and US Mail. (See AR 130-AR 333; AR 071-AR 129.)

5. The City's Housing Element

As of November 13, 2024, HCD found the City's revised draft Housing Element would be compliant only once it was adopted, submitted to, and was approved by HCD after all rezones were completed — conditions the City had not yet satisfied. (AR 597-AR 598.) As of December 26, 2024, the date Petitioners submitted their SB330 Preliminary Applications, the Housing Element was out of compliance. (SAR 001-002.)

6. The City's July 3, 2025 and July 11, 2025 Letters.

The City responded to Petitioners on July 3, 2025. (See SAR 016-SAR 041.) In these letters, the City deemed the Preliminary Applications incomplete, asserting that the full Planning Applications exceeded a 20 percent square footage variance, improperly omitted required density bonus disclosures, and lacked payment of required processing fees. (*Ibid.*) The City sent revised letters on July 11, 2025. (SAR 045-SAR 123.)

7. Petitioners' Invocation of Government Code section 65589.5, subdivision (h)(6)(D).

On July 14, 2025, Petitioners allege they formally invoked Government Code section 65589.5, subdivision (h)(6)(D) for both projects. (SAR 124-SAR 130.) The City, on July 25, 2025, declared it did not need to comply with this statute because it had not taken any actions "for an improper purpose." (SAR 131-SAR 137.)

8. Petitioners' California Public Records Act Request.

Petitioners submitted a CPRA request to the City seeking all records relating to permit requirements for mobile home parks within the City. (AR 366-AR 369.) The City responded that it did not have any such records. (AR 370-AR 381.)

III. THE PENDING WRIT PETITION

On July 24, 2026, Petitioners filed their Opening Brief. On August 28, 2026, The City filed its Opposition Brief, the declaration of Adam N. Nir in support, and a Compendium of Exhibits (Statutory and Regulatory Appendix). On September 2, 2026, a Notice of Lodging of Administrative Record (AR) was filed. On September 11, 2026, Petitioners filed a Reply Brief.

Petitioners raise the following issues in support of their Petition:

- The City does not have a compliant Housing Element and, therefore, the Builder's Remedy applies.
- The SB330 Preliminary Applications were complete as a matter of law.

- The full Preliminary Applications were improperly declared incomplete.
- The City's revised incompleteness letters violated Government Code section 65943, subdivision (a).
- The City failed to comply with Government Code section 65589.5, subdivision (h)(6)(D).
- The City violated the California Public Records Act (CPRA).

In Opposition, the City argues that the AR clearly indicates the SB330 Preliminary Applications and the full Planning Applications were incomplete when submitted. And the City argues that there is no evidence that it undertook any action for an improper purpose. The City also argues it did not violate the CPRA. Therefore, the City argues that each of Petitioners' claims fail. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

IV. WHY THE COURT IS DENYING THE WRIT

A. Standard of Review.

Under Government Code section 65589.5, any action brought to enforce the provisions of this section shall be brought pursuant to Section 1094.5 of the Code of Civil Procedure.

Code of Civil Procedure section 1094.5, subdivision (a), vests authority in the court to review the validity of any final administrative order or decision made as a result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken, and discretion in the determination of facts is vested in the inferior tribunal. The court's inquiry "shall extend to the questions of whether the respondent has proceeded without, or in excess of jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion." (Code Civ. Proc., §1094.5, subd. (b); *Environmental Protection & Info. Ctr. v. Cal. Dept. of Forestry & Fire Protection* (2008) 44 Cal.4th 459, 520-21.)

Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the evidence does not support the findings. (Code Civ. Proc., §1094.5, subd. (b).) If the petitioner claims that the evidence does not support the findings, then in cases where the court is authorized by law to exercise its independent judgment, the abuse of discretion is established if the weight of the evidence does not support the findings. In all other cases, abuse of discretion is established if, from the whole record, substantial evidence does not support the findings. (Code Civ. Proc., §1094.5, subd. (c).)

In a writ proceeding under the HAA, “instead of asking, as is common in administrative mandamus actions, ‘whether the City’s findings are supported by substantial evidence’ (*ibid.*), we inquire whether there is ‘substantial evidence that would allow a reasonable person to conclude that the housing development project’ complies with pertinent standards. (§ 65589.5, subd. (f)(4).) As the public entity that disapproved the project, the City bears the burden of proof that its decision conformed to the HAA. (§ 65589.6.)” (*California Renters, supra*, 68 Cal.App.5th at p. 837.)

B. Analysis.

Petitioners argue the City systematically refuses to comply with California’s state housing laws, including the HAA, HCA, PSA, and SB330 in connection with two Builder’s Remedy housing projects. They argue the record establishes that the City’s Housing Element was out of compliance when Petitioners submitted complete SB330 Preliminary Applications on December 26, 2024, for their two low-income housing projects (mobilehome parks). Yet, the City, they claim, obstructed both projects by declaring the applications incomplete.

Subsequently, Petitioners argue they properly invoked Government Code section 65589.5, subdivision (h)(6)(D), and still the City refuses to comply. Considering this, Petitioners

ask the Court to issue a peremptory writ of mandate directing the City to correct its allegedly unlawful actions.

1. Was the City's Housing Element out of compliance at the time the SB330 Preliminary Applications were submitted such that the Builder's Remedy applies?

As explained above, when a municipality lacks a compliant Housing Element, this gives way to the Builder's Remedy. Petitioners argue that at the time they submitted their SB330 Preliminary Applications, the City was out of compliance. (See AR 597-AR 598; SAR 002.)

Petitioners do not challenge the fact that at the time the applications were originally submitted, the Housing Element was noncompliant; however, they do claim that it is currently under review and is now "conditionally compliant." However, this would *not* affect the Builder's Remedy if complete applications were submitted at the time the Housing Element was noncompliant.

2. Were the SB330 Preliminary Applications incomplete?

Petitioners contend that their SB330 Preliminary Applications were complete and contained all 17 requirements as required by statute.

California Government Code section 65941.1(a) establishes the statutory threshold under which a developer is deemed to have submitted a "preliminary application" for a housing development project. To secure this status, the applicant must remit the required processing fee and satisfy 17 itemized informational requirements submitted to the local jurisdiction. These mandatory disclosures encompass specific site and building plans, proposed density and affordability metrics, environmental and hazard conditions, recorded easements, and property owner consent.

The City argues both applications here were incomplete because all 17 requirements were unmet. The City argues this is demonstrated by the fact that certain boxes remained unchecked

on both preliminary applications. As to the 21600 Project, the SB330 Preliminary Application is clearly incomplete and has numerous boxes that were left unchecked. (See SAR 003-SAR 015.) However, as to the Michigan Project, the boxes are checked. (See AR 014-AR 025.) Therefore, this reason alone would deem the 21600 Project's SB330 Preliminary Application incomplete because by not checking all the boxes, the full 17 required items are not provided to the City. But the Michigan Project would only fail if there were other grounds. As demonstrated below, there are other grounds for deeming the Michigan Project's SB330 Preliminary Application incomplete.

In reply, Petitioners claim the City is presenting an altered SB330 Preliminary Application for the 21600 Project and include extra record evidence to show the boxes were checked. But Petitioners were the party that moved to augment the record and included the SAR records, and the SAR records include an application for 21600 (SAR 003-SAR 015) where the boxes are indeed unchecked. There is no legal authority for allowing new evidence with the reply brief and further augmentation of the record. The AR and SAR were lodged with the Court and Petitioners did not object to the records as inaccurate. Even if the boxes were checked and if they were initially found to have been complete, for the reasons stated below, the preliminary applications still fail.

However, Petitioners claim the City relied on citations to the AR that are supplemented, for which the City had not served Petitioners. Ultimately, it appears that Petitioners are arguing they were not provided with the complete AR.

There are issues with this claim. First, on July 24, 2026, Petitioners filed their Request to Augment the Administrative Record. In that request, Petitioners state the City certified AR 001-AR 602. This includes the citations AR 401-AR 590 that Petitioners claim are missing. In

addition, the Petitioners presumably reviewed the AR in order to identify the missing documents that led to the augmentation and resulted in the SAR. Next, the request to augment also includes the SAR pages at issue (SAR 264-SAR 275). The Petitioners sought to augment and add SAR 001 through SAR 274. So there appears to only be one page unaccounted for.

In summary, the Court is not persuaded by the claim that the Petitioners were not provided with the AR.¹

3. Were the full Planning Applications incomplete?

Petitioners contend the City's determinations that these applications were incomplete were unlawful. Petitioners focus on three issues the City identified and claim they do not apply. First, Petitioners argue the projects did not increase in square footage by more than 20% (AR 130-AR 333; AR 071-AR 129), that they only reserved the right to request a density bonus (AR 014-AR 021), and that the City demanded unauthorized fees (AR 390-AR 392) in order to claim the applications were incomplete.

a. *The Increase in Square Footage.*

Government Code section 65941.1(a)(3) requires preliminary housing applications to include detailed site plans and elevations specifying building footprint, massing, height, design, and approximate square footage. Under subdivision (d), if the proponent subsequently alters the residential unit count or "square footage of construction" by 20 percent or more — excluding statutory density bonuses or concessions — the preliminary application loses its deemed status until revised subdivision (a) disclosures are resubmitted. For this calculation, building area is strictly governed by Title 24, section 202, measuring the space within surrounding exterior walls or beneath horizontal roof and floor projections, excluding vent shafts and courts.

¹ In any event, this would serve as grounds — at most — for a continuance of the hearing to allow resolution of the issues concerning the record.

The City argues these applications were incomplete because they exceeded the 20% variance with respect to the square footage of each of the buildings rather than the overall square footage of the entire Project. While Petitioners maintain the overall buildout plan is the relevant inquiry, the City's reading of the statute appears to more clearly reflect the legislative intent. First, the square footage referred to is stated as "number of residential units or square footage of construction changes by 20 percent or more" and "square footage of construction" is defined as the "building area." Additionally, "building area" as stated above appears to refer to a structure. As noted by the City, Government Code section 65941.1 explicitly requires an application to provide the approximate square footage of each building that is to be occupied as part of the preliminary application for a housing development project. (Gov. Code, § 65941.1, subd. (a)(3).) And, if these change by more than 20%, then the preliminary application is deemed incomplete where it provided information that differed more than the allowable variance.

Here, the City's reading of the statute appears accurate and the buildings proposed in the fully Planning Application did exceed the 20% threshold from the Preliminary Applications' proposals; thus, Petitioners were required to resubmit the information required by Government Code section 65941.1, subdivision (a), and the preliminary applications could not be considered complete until that time.

With respect to the Michigan Project, the record reflects that the units varied from 1,008 square feet, 336 square feet, and 294 square feet. But the preliminary application listed the units as 792 square feet across the board. (AR 075, AR 288, AR 336.) The percentage of variance here is 27, 57, and 63 percent respectively.

As to the 21600 Project, the application provided for units of 980 and 294 square feet, but the preliminary application proposed units of 792 square feet across the board. (AR 135, AR 345.) This results in a 24 percent and 63 percent increase.

Not only are the full planning applications problematic on these grounds, but this variance also renders the preliminary applications incomplete. Thus, the Michigan Project's preliminary application was also incomplete as well as the full planning applications for both projects.

In reply, Petitioners argue the HCD form itself supports its reading, but a review of the SB330 Preliminary Applications show that the square footage requests are "by building." (See SAR 006, AR 016.)

b. Density Bonus.

Here, the City emphasizes that the applications for both projects checked box number "8" indicating they were seeking density bonuses. (See AR 016, AR 060.) When seeking density bonuses, an application must include, at minimum, the number of bonus units and any incentives, concessions, waivers, or parking reductions being requested pursuant to Government Code section 65915. Moreover, such requests fall under the 17 statutory items required of a preliminary application under Government Code section 65941.1, subdivision (a)(11). Thus, at the time of the preliminary application, an applicant must state whether they are seeking a density bonus.

Here, Petitioners essentially concede they did not provide any of the required information because they were merely 'reserving the right to seek a density bonus.' This does not comply with the statute. Nowhere do Petitioners cite statutory authority for reserving such a right. It seems impractical for a municipality to be able to determine whether a project can be approved without knowing if a density bonus is being sought. It seems impractical as well to render an

application complete at the time of submission where one of the 17 required items is undetermined and simply ‘reserved.’ This too, renders the applications incomplete.

c. Fees.

Petitioners simply claim the City was wrong to reject the application for failure to pay the required fees.

But the City highlights that Petitioners were on notice of additional fees as the City’s Residential Permit and Impact Fees document expressly states “that there may be additional development fees from other City Departments including Planning, Public Works, Fire, and others. Furthermore, there may be additional development fees from outside agencies....” (AR 337, AR 346, AR 439, AR 589.) The City argues that it is entitled to charge and recover fees for the filing and processing of applications pursuant to Government Code section 66014. (Gov. Code, § 66014, subd. (b) [“The fees charged pursuant to subdivision (a) may include the costs reasonably necessary to prepare and revise the plans and policies that a local agency is required to adopt before it can make any necessary findings and determinations.”].)

Petitioners also dispute the \$10,000 fee for the City Attorney’s office. According to the City, its fee schedule for Planning & Development Service is publicly accessible on the City’s website and requires that an applicant must pay the actual hourly rate of the City Attorney’s Office, plus a 15 percent administrative fee. (See AR 338, AR 347, AR 376, AR 387.) The \$10,000 deposit amount Petitioners were required to pay is an estimate of required attorney time, and any unused deposit fees would be returned to Petitioners concluding review. Nowhere do the Petitioners provide legal authority demonstrating the City or its fee schedule violates the HAA.

In the reply, Petitioners make an unusual request instead. They ask that the Court deem their resubmittal applications dated May 22, 2026 (those applications are not part of the AR or SAR) as complete. These resubmissions occurred after the Petition was filed in this matter, is not

part of the allegations, nor was this argument presented in the Petitioners' Opening Brief. It also has not been determined that the Housing Element was out of compliance on May 22, 2026. The Court rejects this argument.

C. Did the City's revised incompleteness letters violate Government Code section 65943, subdivision (a)?

Petitioners argue the City violated section 65943, subdivision (a) because they requested new information in this subsequent review that was not included in the initial incompleteness determination. (See SAR 045-SAR 123.)

Under Government Code section 65943(a), a public agency must determine in writing whether a development application is complete within 30 calendar days of receipt or the application is automatically deemed complete if it contains the requisite statutory statement. If deemed incomplete, the agency must provide an exhaustive list of deficiencies based solely on its established submittal checklist, and it is strictly barred from demanding new information in subsequent reviews that was omitted from this initial notice. Each resubmittal initiates a fresh 30-day completeness review period, requiring the agency to detail specific deficiencies and describe the precise materials the applicant must supply to cure them.

The City argues that the July 3, 2025 letters were the responsive letters sufficiently demonstrating why the applications were incomplete. While the City did issue letters on July 11, 2025, those letters were only prepared at the request of the Petitioners, who asked for more detailed information. (AR 245, AR 246-AR 285, AR 286, AR 287-AR 326.) It appears these letters were merely intended to provide greater clarity, which Petitioners requested.

Here, Petitioners provide no case law that the July 3 letters violated this section or that a municipality violates this section when asked for further information from an applicant itself.

D. Did the City fail to comply with Government Code section 65589.5, subdivision (h)(6)(D) or was it improperly invoked?

Petitioners argue the City failed to comply with section 65589.5, subdivision (h)(6)(D) after they invoked it. According to Petitioners, the five-working-day deadline was July 21, 2025, but there is nothing in the record demonstrating that the City posted, distributed, or filed the required notices by that date or any time thereafter. Petitioners claim the City's self-declared exemption has no basis in law.

Under Government Code section 65589.5(h)(6)(D)(i)–(v), a housing developer may proceed with the approval process if it determines a city's improper conduct effectively amounts to a *de facto* project disapproval without final administrative action. Serving the city with written notice of this challenge triggers specific local obligations: the municipality must publish notice on its website within five working days and observe a mandatory 60-day waiting period to evaluate all public comments, objections, and evidence. Ultimately, within 90 days of receipt, the city must issue either a formal written statement or statutory findings compliant with subdivisions (h)(6)(D)(iv)(I) and (II).

Here, the City argues that Petitioners are mistaken with respect to this statute because its letters were not disapprovals of the projects and that the City never sent “rejection letters” *per se*. Petitioners, instead, were sent letters identifying the incompleteness of their applications and providing the opportunity to resubmit their applications. (AR 245-AR 285, AR 286-AR 326.)

More to the point, however, the City is correct that Petitioners never assert how its actions constituted a “disapproval.” Under Government Code section 65589.5(h)(6)(D)(i), a city is deemed to have disapproved a housing project if it pursues an improper course of conduct — such as harassment, unnecessary delay, or artificially driving up costs — that effectively halts the development without formal administrative action. To trigger this statutory claim of *de facto*

disapproval, the applicant must satisfy specific statutory conditions. Chief among them, subdivision (h)(6)(D)(i) mandates that the applicant serve formal written notice on the designated local planning agency detailing the offending conduct and explaining why it amounts to project disapproval.

The purported “invocations” are located in the record at SAR 124-SAR 130 (Exhibit 11). Petitioners, however, did not properly invoke this code section in their letter to the City. The letter consists of responses to the City’s objections and states why Petitioners believe the City is in error. At best, it could arguably be stated that this details the challenged conduct. But even this is a generous reading of the email. Omitted from the email is any statement as to why this constitutes disapproval by the local agency. The letter ultimately does not demonstrate that the City undertook a course of conduct for an improper purpose. The email merely states Petitioners disagree with the City’s responses to the applications and why they were deemed incomplete.

Because Petitioners failed to serve adequate statutory notice establishing *de facto* disapproval under subdivision (h)(6)(D)(i), the City’s obligations to post public notice within five working days and make subsequent written findings were never triggered. Since this event never came to pass, the City did not err when it did not post further notice or make subsequent written findings.

E. Did the City violate the CPRA?

Petitioners argue they submitted a CPRA request, and the City responded that it did not have any such records. (AR 366-AR 381.) Petitioners contend this is an admission the City lacks permit requirements applicable to mobile home parks. Petitioners present an internally contradictory claim: they acknowledge the City complied with the CPRA by certifying that no responsive records exist, yet they simultaneously seek judicial relief to confirm that response as an evidentiary admission. Notably, Petitioners only generally cite to the CPRA as codified at

sections 7920.000, *et seq.* Finally, Petitioners argue if the City reverses its claim, then it admits it violated the Act and thus Petitioners are entitled to an immediate production and attorney fees under Government Code section 7923.115. Yet, Petitioners claim this later request is sought as declaratory relief, sought ancillary, rather than directly within this peremptory writ itself.

In this writ, neither party addresses the statute, nor the specific provisions that apply and were supposedly violated (in fact, Petitioners seemingly concede the City complied with the CPRA when it responded referring to another agency), and neither addresses the relevant standard of review in this proceeding. Instead, Petitioners make broad sweeping claims of rights that now arise because the City lacks such records.

This claim is unsupported by any legal authority. A point merely asserted without any authority for the proposition is deemed without foundation and requires no discussion. (*See Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1281; *see also Boblitt v. Boblitt* (2010) 190 Cal.App.4th 603, 609 (“[E]very brief should contain a legal argument with citation of authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration. Contentions supported neither by argument nor by citation of authority are deemed to be without foundation, and to have been abandoned.” [Citations omitted.])). This argument appears abandoned and without foundation. The court is also not required to develop Petitioners’ argument and need not consider undeveloped arguments. (*City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1099; *see also California Farm Bureau Federation, supra*, 143 Cal.App.4th at p. 193 [arguments asserted without support are treated as forfeited].)

In sum, in light of the above analysis, the City’s decisions conformed to the HAA. As such, it did not abuse its discretion when it issued letters to Petitioners identifying their project applications as incomplete.

V. CONCLUSION

Petitioners' writ petition is DENIED, in its entirety (First through Ninth Causes of Action and the Seventeenth Cause of Action).

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

ELIZABETH RODRIGUEZ,

Plaintiff,

v.

RONALD ABARO DDS, INC. dba CHINO
FAMILY DENTAL, et al.,

Defendant.

Case No.: CIVSB2226979

**[TENTATIVE] ORDER
(1) DENYING MOTION FOR
SUMMARY JUDGMENT FILED
BY DEFENDANT CARLOS
BERMUDEZ (2) DENYING
MOTION FOR SUMMARY
ADJUDICATION AS TO THE
SEXUAL HARASSMENT COUNT;
AND (3) GRANTING MOTION
FOR SUMMARY ADJUDICATION
AS TO THE DISABILITY AND
GENDER-BASED HARASSMENT
CLAIMS**

VI. INTRODUCTION

This is a wage-and-hour and employment litigation. On November 28, 2022, Plaintiff Elizabeth Rodriguez filed her Complaint against Defendants Ronald Abaro DDS, Inc. dba Chino Family Dental (CFD), Ronald Abaro, Carlos Bermudez, Ianina Cheung, and other parties who

obtained summary adjudication orders in their favor. The operative First Amended Complaint pleads 22 causes of action:

- (1) Denied rest breaks against CFD and Abaro;
- (2) Denied meals against CFD;
- (3) Waiting time penalties against CFD and Abaro;
- (4) Failure to reimburse against CFD and Abaro;
- (5) Inaccurate wage statements against CFD and Abaro;
- (6) Sex/gender discrimination against CFD;
- (7) Disability discrimination against CFD;
- (8) Perceived disability discrimination against CFD;
- (9) Disability-based associational discrimination against CFD;
- (10) Sexual harassment against CFD and Cheung;
- (11) Harassment (sex, gender, & disability) against CFD, Bermudez, and Cheung;
- (12) Retaliation against CFD;
- (13) Failure to prevent against CFD;
- (14) Failure to accommodate against CFD;
- (15) Failure to interact against CFD;
- (16) Retaliation (Lab. Code, §§ 98.6, 246.5, & 1102.5) against CFD;
- (17) Negligent hiring, retention, and supervision against CFD;
- (18) Battery against Cheung;
- (19) Sexual battery against Cheung;
- (20) Assault against Cheung;
- (21) Violation of the Unfair Competition Law (UCL) against CFD; and

(22) Wrongful/constructive termination against CFD.

Defendants answered.

A. FAC's Allegations

The FAC alleges CFD employed Rodriguez as a registered dental assistant (§ 27). She suffers from depression and anxiety (§ 28). In the course of her employment, supervisor Bermudez would stand over her and stare at her, talk down to her and overexplain things, and address her unprofessionally in front of patients. Bermudez, a married man, and coworker Cheung would kiss and act overly friendly, making Plaintiff uncomfortable. Additionally, Cheung started inappropriately touching Rodriguez, and on one occasion, it so upset her that she had a panic attack and had to leave work early and be put off work for a few days. Also, manager Erika Laza called Rodriguez hard-headed in front of patients (§§ 29-33, 36, 42). On one occasion, Rodriguez was assigned to work with a dentist who may have had Covid with no requirement that he be off work or take a test before returning to work. Yet, when Rodriguez took off sick unrelated to any Covid symptoms, she was required to obtain a negative Covid test before returning (§§ 34-35, 39). Further, Rodriguez requested a day off on two different occasions to assist family and was denied those time-off requests (§§ 38, 40). Plaintiff was also subjected to false and improper write-ups and warnings. Finally, due to the stress at work, she quit on May 23, 2021 (§§ 41, 43, 45).

The FAC also alleges that Rodriguez was not provided uninterrupted meals and rest breaks, which resulted in the premium wage not being paid or recorded in her wage statements. She was not reimbursed for the required Covid test she took, and for vehicle expenses when she traveled to different locations (§§ 39, 46-49, 62, 68, 81-82, 90). When she was constructively terminated, Rodriguez did not receive her final paycheck in a timely manner (§ 75).

Finally, the FAC alleges Defendants Abaro was an owner, director, officer, or managing agent of CFD and personally involved in the wage matters. Alternatively, he was the alter ego of CFD (§§ 13-14, 17).

B. Pending Motion

Defendant Bermudez moves for summary judgment/adjudication. Plaintiff Rodriguez opposes. Defendant Bermudez replies. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

VII. OBJECTIONS

With her Opposition, Plaintiff Rodriguez filed 10 evidentiary objections to Bermudez's Declaration: (1)-(2) § 5, (3)-(4) § 6, (5)-(6) § 8, (7)-(8) § 9, and (9)-(10) § 10 on various grounds, including vagueness, lack of foundation, argumentative, legal conclusion, improper opinion, and relevance. The Court SUSTAINS objections #1-2, 5, and 10; but OVERRULES objections #3-4 and 6-9.

VIII. EXPLANATION OF COURT'S RULINGS

Defendant submits 45 undisputed facts and Plaintiff submits 38 additional facts. The majority are irrelevant as they relate to matters unrelated to Bermudez's purported liability for harassment. Furthermore, several of Defendant's facts are mere conclusions or arguments. Only relevant facts will be addressed herein.

The sole cause of action against Defendant Bermudez is sex, gender and/or disability harassment (11th cause of action). Although the FAC pleads disability harassment, Plaintiff indicates Bermudez's harassment is solely predicated upon gender or sex.

The Fair Employment & Housing Act (FEHA) imposes liability on an employee and an employer for harassing an employee because of one's sex, gender, or disability. (Gov. Code, § 12940, subd. (j); *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707 [*Roby*].) A harassment

claim “focuses on situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.” (*Roby, supra*, 47 Cal.4th at p. 706.) The employer is strictly liable if the harassment is by a supervisor, and liable if the harassment is by a non-supervisory employee or non-employee if it knows or should know of his conduct and fails to take immediate and appropriate corrective action. (Gov. Code, § 12940, subd. (j)(1).)

To establish harassment, a plaintiff needs to prove: (1) she belongs to a protected group, (2) she was subjected to unwelcome harassment, (3) based on his protected status, and (4) the harassment was sufficiently severe or pervasive to alter the conditions of her employment. (*Jones v. Department of Corrections & Rehabilitation* (2007) 152 Cal.App.4th 1367, 1377.) The harassment must be both objectively and subjectively offensive. (*Lyle v. Warner Bros. Television Production* (2006) 38 Cal.4th 264, 284 [Lyle].)

Sufficiently severe or pervasive means the plaintiff must show extremely offensive behavior or a repeated, routine, or generalized pattern of harassment. (*Lyle, supra*, 38 Cal.4th at pp. 283-84.) Whether the alleged harassment is sufficiently hostile and abusive is determined from the totality of the circumstances, which include (a) the frequency of the offensive conduct, (b) the severity of the offensive conduct, (c) whether it is physically threatening or humiliating, or mere offensive utterance, and (d) whether it interferes with the employee’s work performance. (*Bailey v. San Francisco Dist. Attorney’s Office* (2024) 16 Cal.5th 611, 628.)

A. Gender Harassment

CFD employed Rodriguez around July 8, 2020. Defendant’s Separate Statement of Undisputed Facts (UF) #7 (undisputed); Plaintiff’s Additional Facts (AF) #1. While Rodriguez

was employed at CFD, Bermudez was her supervisor. UF #2 (undisputed);² AF #2. Bermudez stopped working at CFD and ceased supervising Rodriguez no later than February 12, 2021. UF #3. Plaintiff disputes the fact with an argument. She later adds that Bermudez was the back floor supervisor from July 2020 through December 2020. AF #3.

The regular staff at CFD from July 2020 to March 2021 was entirely females, except Bermudez. This included the office manager, two hygienists, assistant managers, dental assistants (other than Bermudez), and front office personnel. The regional manager was also female. UF #13 (undisputed).

During Bermudez's time working with Rodriguez, he noted certain deficiencies in her performance and sought to have her work faster and more efficiently. He occasionally communicated with her to improve her work ethic or timing of tasks. This was similar to his interactions with other employees. He did not use any foul or offensive language. UF #16, 19-20, & 23. Plaintiff disputes these facts to contend Bermudez would stand and stare at her while she worked, needlessly overexplained things in front of patients, and tried to humiliate her in front of patients (*e.g.*, asked her in front of a patient why her patient's crowns were falling off). He would further snap his fingers at her. He would talk down to and belittle her. He told her that if he was not getting under her skin, then he was not doing his job right. (See also AF #5-7.)

Under these relevant facts, Bermudez's gender harassing behavior consisted of standing and staring at Rodriguez while she worked; needlessly overexplaining things; snapping his fingers at her; and talking down to, belittling, or humiliating her in front of patients. Yet the implication is Bermudez's conduct was done to get Rodriguez to work faster and more

² Plaintiff indicates the fact is disputed to any implication that may arise from the fact. However, this is an argument on how the fact supports or does not support Bermudez's liability. Other facts with a similar dispute in part are not referenced. The inferences from the facts will be analyzed when comparing the facts with the legal standard and arguments.

efficiently. Nothing indicates that his “harassing” behavior was done because Rodriguez is female.

Furthermore, watching Rodriguez work, explaining things, and commenting on performance are essentially personnel matters and the kinds of things any reasonable person would expect a supervisor to do. Personnel matters do not constitute harassment. (*Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 737.) However, actions by a supervisor engaging in a managerial role may support harassment when the act communicates a hostile message. (*Roby, supra*, 47 Cal.4th at pp. 706, 709.) Yet nothing is offered to support that Bermudez’s alleged conduct would reasonably convey a hostile message of bias against female employees.

Although the relationship between subordinate and supervisor may become contentious, frustrating, and/or upsetting, it does not equate to the supervisor engaging in harassing conduct. (*Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 737.) Similarly, even if a supervisor carries out duties negatively or maliciously that does not equate to engaging in harassment based on a protective characteristic. (*Ibid.*)

This is the case here. While Rodriguez may have found Bermudez’s conduct subjectively objectionable, the evidence demonstrates only a managerial style that was harsh, unprofessional, and contentious — not animus tied to a protected status.

Based on the facts and submitted evidence, no triable issue exists on Bermudez engaging in gender-based harassment.

B. Sexual Harassment

It is customary for a lead dental assistant and hygienist to discuss patient care issues privately and away from patients. Bermudez’s job was to be that person who talked with hygienists and dentists. He did nothing untoward with Cheung. UF #22 & 40. Plaintiff disputes

because Bermudez and Cheung were overly friendly, kissed each other in front of employees, and would disappear together into a secluded area during work hours. This created an uncomfortable work environment for her. (See also AF #8.)

Under the facts and evidence, Defendant fails to negate any liability for sexual harassment by his alleged engagement in creating a hostile work environment through his interactions with Cheung. Because Rodriguez's testimony directly contradicts Bermudez's denial, this credibility dispute presents a triable issue of fact for the jury.

Defendant also fails to establish as a matter of law that the alleged conduct between himself and Cheung was insufficiently severe or pervasive to alter the conditions of Rodriguez's employment.

Thus, in relation to sexual harassment, Defendant Bermudez fails to meet his burden and/or triable issues exist.

C. Disability Harassment

As indicated above, Plaintiff Rodriguez concedes no disability harassment occurred. Moreover, Bermudez cannot be liable for disability harassment because he had no knowledge of Rodriguez's alleged disability (UFs 34, 36, 44 (essentially undisputed)). Therefore, no triable issue exists on Bermudez engaging in disability-based harassment.

D. Resolution

A motion for summary adjudication to a cause of action can only be granted if it completely disposes of the cause of action. (Code Civ. Proc., § 437c, subd. (f)(1); *Belio v. Panorama Optics, Inc.* (1995) 33 Cal.App.4th 1096, 1102.) One cannot seek to adjudicate an issue within a cause of action. (*Belio v. Panorama Optics, supra*, 33 Cal.App.4th at p. 1102.)

Under that standard, the Court DENIES Defendant Bermudez's Motion for Summary Judgment/ Adjudication because even if he negated any liability for gender or disability harassment, a theory for sexual harassment remains under the 11th cause of action.

But summary adjudication may lie to a separate and distinct wrongful act even though combined with other wrongful acts alleged in the same cause of action. (*Mathieu v. Norrell Corp.* (2004) 115 Cal.App.4th 1174, 1188; *Lilienthal & Fowler v. Superior Court (Karr)* (1993) 12 Cal.App.4th 1848, 1854-55.) The separate and distinct wrongful act constitutes a separate and distinct primary right, and a violation of a primary right is a separate and distinct cause of action. (*Blue Mountain Enterprises, LLC v. Owen* (2022) 74 Cal.App.5th 537, 549; *Hindin v. Rust* (2004) 118 Cal.App.4th 1247, 1257.)

Different protected statuses can involve different primary rights. (*See, e.g., Arnold v. Dignity Health* (2020) 53 Cal.App.5th 412, 427.)

The Court considers each protected status involved as a separate count subject to adjudication within the 11th cause of action. Accordingly, the Court GRANTS summary adjudication of the gender and disability harassment counts, but DENIES summary adjudication of the sexual harassment count.

IX. CONCLUSION

1. Defendant Bermudez's Motion for Summary Judgment is DENIED. He fails to negate each theory of harassment alleged against him.
2. Defendant Bermudez's Motion for Summary Adjudication of the sexual harassment count is DENIED. Triable issues exist on whether Defendant Bermudez engaged in sexual harassment by allegedly engaging in inappropriate sexual behavior in front of Plaintiff Rodriguez [UF #22 & 40; AF #8; and supporting evidence: Bermudez's Declaration; and Plaintiff's Discovery Responses (Def's Exhs. B-C; Pl's Exh. E)].

3. Defendant Bermudez's Motion for Summary Adjudication of the disability and gender-based harassment claims is GRANTED. Bermudez could not have harassed Rodriguez based on a disability of which he was unaware, and the alleged gender harassment constitutes non-actionable personnel management actions devoid of discriminatory animus. [UF #13, 16, 19-20, 23, 29, 34, 36, & 40; AF #5-7; and cited evidence: Bermudez & Lazo's Declarations; Rodriguez's Deposition; and Plaintiff's Discovery Responses (Def's Exhs. B-C; Pl's Exh. E)]. IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

ELIZABETH RODRIGUEZ,

Plaintiff,

v.

RONALD ABARO DDS, INC. dba CHINO
FAMILY DENTAL, et al.,

Defendant.

Case No.: CIVSB2226979

**[TENTATIVE] ORDER
(1) DENYING MOTION FOR
SUMMARY JUDGMENT; AND (2)
GRANTING IN PART AND
DENYING IN PART MOTION FOR
SUMMARY ADJUDICATION,
BOTH MOTIONS FILED BY
DEFENDANT CHINO FAMILY
DENTAL**

X. INTRODUCTION

This is a wage-and-hour and employment litigation. On November 28, 2022, Plaintiff Elizabeth Rodriguez filed her Complaint against Defendants Ronald Abaro DDS, Inc. dba Chino Family Dental (CFD), Ronald Abaro, Carlos Bermudez, Ianina Cheung, and other parties who obtained summary adjudication orders in their favor. The operative First Amended Complaint pleads 22 causes of action:

- (1) Denied rest breaks against CFD and Abaro;
- (2) Denied meals against CFD;
- (3) Waiting time penalties against CFD and Abaro;
- (4) Failure to reimburse against CFD and Abaro;
- (5) Inaccurate wage statements against CFD and Abaro;
- (6) Sex/gender discrimination against CFD;
- (7) Disability discrimination against CFD;
- (8) Perceived disability discrimination against CFD;
- (9) Disability-based associational discrimination against CFD;
- (10) Sexual harassment against CFD and Cheung;
- (11) Harassment (sex, gender, & disability) against CFD, Bermudez, and Cheung;
- (12) Retaliation against CFD;
- (13) Failure to prevent against CFD;
- (14) Failure to accommodate against CFD;
- (15) Failure to interact against CFD;
- (16) Retaliation (Lab. Code, §§ 98.6, 246.5, & 1102.5) against CFD;
- (17) Negligent hiring, retention, and supervision against CFD;
- (18) Battery against Cheung;
- (19) Sexual battery against Cheung;
- (20) Assault against Cheung;
- (21) Violation of the Unfair Competition Law (UCL) against CFD; and
- (22) Wrongful/constructive termination against CFD.

Defendants answered.

A. FAC's Allegations

The FAC alleges CFD employed Rodriguez as a registered dental assistant (§ 27). She suffers from depression and anxiety (§ 28). In the course of her employment, supervisor Bermudez would stand over her and stare at her, talk down to her and overexplain things, and address her unprofessionally in front of patients. Bermudez, a married man, and coworker Cheung would kiss and act overly friendly, making Plaintiff uncomfortable. Additionally, Cheung started inappropriately touching Rodriguez, and on one occasion, it so upset her that she had a panic attack and had to leave work early and be put off work for a few days. Also, manager Erika Laza called Rodriguez hard-headed in front of patients (§§ 29-33, 36, 42). On one occasion, Rodriguez was assigned to work with a dentist who may have had Covid with no requirement that he be off work or take a test before returning to work. Yet, when Rodriguez took off sick unrelated to any Covid symptoms, she was required to obtain a negative Covid test before returning (§§ 34-35, 39). Further, Rodriguez requested a day off on two different occasions to assist family and was denied those time-off requests (§§ 38, 40). Plaintiff was also subjected to false and improper write-ups and warnings. Finally, due to the stress at work, she quit on March 23, 2021 (§§ 41, 43, 45).

The FAC also alleges that Rodriguez was not provided uninterrupted meals and rest breaks, which resulted in the premium wage not being paid or recorded in her wage statements. She was not reimbursed for the required Covid test she took, and for vehicle expenses when she traveled to different locations (§§ 39, 46-49, 62, 68, 81-82, 90). When she was constructively terminated, Rodriguez did not receive her final paycheck in a timely manner (§ 75).

Finally, the FAC alleges Defendant Abaro was an owner, director, officer, or managing agent of CFD and personally involved in the wage matters. Alternatively, he was the alter ego of CFD (§§ 13-14, 17).

B. Pending Motion

Defendant CFD moves for summary judgment or summary adjudication of the 1st through 17th, 21st, and 22nd causes of action. Plaintiff Rodriguez opposes. Defendant CFD replies. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

XI. OBJECTIONS

With her Opposition, Plaintiff Rodriguez filed 39 evidentiary objections to (1)-(8) Meier's Declaration at ¶¶ 4-12; (9)-(17) Andrade Declaration at ¶¶ 3-6, 8-10; (18)-(28) Lazo Declaration at ¶¶ 3-13, 18, 24-26; (29)-(33) Bermudez Declaration at ¶¶ 5-6, 8-10; and (34)-(39) Cheung Declaration at ¶¶ 4, 7-11. The Court SUSTAINS objections #1-8 as irrelevant, but OVERRULES objections #9-39.

With its Reply, Defendant CFD filed 4 objections to Rodriguez's Declaration: (1) ¶ 3, (2) ¶ 5, (3) ¶ 6, and (4) ¶ 7 on various grounds. The Court OVERRULES all 4 objections.

XII. EXPLANATION OF THE COURT'S RULING

Defendant CFD submits 337 facts in its Separate Statement of Undisputed Facts (UF). The first 203 undisputed facts are divided into sub-categories A-J, and undisputed facts #204-337 consist of all submitted facts. The total facts are 134, and the other 203 facts are repeats with new numbers. The analysis of each cause of action and/or challenges to each cause of action will address these facts with the attempt to use the same number for any overlapping facts.

Plaintiff submits an additional 216 facts within her Separate Statement of Undisputed Facts (AF). Any additional fact will be addressed where it is relevant.

With some slight variations, this Order addresses the causes of action in the manner raised in Defendant CFD's Motion.

A. 6th-9th, 12th, & 16th Causes of Action: Discrimination & Retaliation

FEHA prohibits an employer from discharging any person because of sex or disability. (Gov. Code, § 12940, subd. (a).) A *prima facie* case for discrimination is (1) the plaintiff is a

member of a protected class, (2) the plaintiff was qualified for the position he sought or was performing competently in the position he held, (3) the plaintiff suffered an adverse employment action, and (4) a substantial motivating reason for the adverse action was discriminatory. (*Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 355; *Castro-Ramirez v. Dependable Highway Express, Inc.* (2016) 2 Cal.App.5th 1028, 1037.)

An employer is further prohibited from retaliating against an employee who (1) opposed any practice forbidden by FEHA, and filed a complaint, testified, or assisted in any proceeding under FEHA [Gov. Code, § 12940, subds. (h)]; (2) filed a complaint or litigation related to any rights protected by the Labor Code [Lab. Code, § 98.6, subd. (a); *Grinzi v. San Diego Hospice Corp.* (2004) 120 Cal.App.4th 72, 87-88]; (3) used or attempted to use accrued sick days [Lab. Code, § 246.5, subd. (c)], and (4) disclosed information concerning reasonably based suspicions of illegal activity [Lab. Code, § 1102.5, subd. (b); *Ross v. County of Riverside* (2019) 36 Cal.App.5th 580, 592 (*Ross*)]. To establish retaliation, the plaintiff must prove (a) he engaged in a protected activity, (b) the employer subjected him to adverse employment, and (c) there is a causal link between the two. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042; *Ross, supra*, 36 Cal.App.5th at p. 592; *St. Myers v. Dignity Health* (2019) 44 Cal.App.5th 301, 314; *Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 244.)

In challenging the discrimination and retaliation causes of action, Defendant CFD argues (a) all fail because there was no adverse action, (b) the disability-based discrimination claims fail because there was no known disability, and (c) the retaliation-based claims fail because there was no protected activity.

1. No Adverse Action (6th-9th, 12th, & 16th Causes of Action)

Per the FAC, the adverse action was a write-up and/or Rodriguez's constructive termination (§§ 101-02, 121-22, 139-40, 159, 210-11, & 276-76). Defendant argues that no

adverse employment action occurred because Rodriguez voluntarily resigned when she walked off the job.

CFD employed Rodriguez on approximately July 8, 2020, as a registered dental assistant. UF #1 (undisputed); AF #1. Rodriguez's employment ended when she left mid-day on March 23, 2021 and never returned. UF #2-3. Upon leaving, Rodriguez texted a junior employee that she had it with Evelyn Molina, and she walked out. When asked if she was coming back, Rodriguez stated that she did not think so. UF #30. Rodriguez later texted a third-party that she was not returning to CFD because of "too many attitudes." UF #31.

Plaintiff concedes she walked off the job, but disputes the inference from the above facts, *i.e.*, that she voluntarily resigned. Rather, she noted that on March 23, Molina had her stocking and doing care calls. While on the phone with a patient, Molina ordered her to do something else. She explained that she was on the phone with a patient. Molina then said that if she had something to say to her to say it to her face. Feeling overwhelmed and stressed by the hostile work environment, Rodriguez walked out. After leaving, she texted Erika Laza, waited in her car for a response, and attempted twice to call Karla Andrade. Neither responded to her. (See also AF #151-65 & 191-92.)

Before leaving CFD, Rodriguez was in contact with Melba Mayes about working for her. After leaving CFD, Rodriguez started working for Mayes on March 29, 2021. UF #7, 9, & 50. Plaintiff only disputes any inference that her having a job after she left means that she was not constructively terminated.

In January 2021, Karla Andrade prepared a record of conversation with Rodriguez. The record related to a patient complaint and CFD being unable to get reimbursed for X-rays because of poor quality. UF #18. Plaintiff disputes because Bermudez instructed her to move to the next

patient, and she needed to comply with his instructions. However, Andrade took her explanation the wrong way and proceeded with the warning. (See also AF #120-22.) When Rodriguez received write-ups for poor performance, she never explained her substandard performance. UF #38. Plaintiff disputes because the March 22, 2021, write-up was false, as she had not taken the X-rays at issue. It was issued because she requested time off for accommodation and complained about harassment by Cheung. (See also AF #124-29, 132, & 149-50.)

By Defendant's own admission, Plaintiff was issued a write-up. It offers no argument or analysis of why that write-up would not constitute an adverse action. Furthermore, although the evidence supports an inference that Rodriguez was planning to leave her employment with CFD to work for Mayes' dental office, that is not sufficient to conclude when she walked out on March 23, 2021, it was voluntary.

A triable issue exists as to whether Plaintiff voluntarily left because of a new job, because she just did not like the CFD's office and personnel, or because she was subject to alleged harassing conduct (to be addressed further below) that she was left with no reasonable choice but to leave.

2. No Known Disability (7th-9th Causes of Action)

Defendant argues that the disability-based discrimination causes of action fail because it had no knowledge that Rodriguez suffered from any disability.

Rodriguez never told CFD about any disabilities, medical issues, or prior health problems that she was experiencing. CFD never perceived Rodriguez as having any disability or medical condition. UF #28-29 & 80. Although she had mental health issues before and after her employment with CFD, she did not inform CFD about them. UF #77. When returning from being out sick, Rodriguez provided a medical note clearing her to return to work with no restrictions. UF #81-82.

Plaintiff disputes based on her conclusion and belief that CFD knew or perceived her possessing a disability. She further notes that she had requested an accommodation, which, by Plaintiff's discovery responses, relates to Rodriguez requesting time off to drive her mother to the airport, as her mother needed assistance due to being sick, and to take her daughter to a dental surgery appointment. Those time-off requests were denied without any explanation. (Responses to Special Interrogatory #6 [Def's Exh. C].) She had a panic attack at the office after a comment made by Lazo, and thereafter obtained a doctor's note excusing her absence between March 12 and 16, 2021. (See also AF #10, 65-76, 99-105, & 113.) However, Plaintiff never reported that she had a panic attack. AF #112.

In construing these facts and supporting evidence, Defendant cannot be liable for disability-based discrimination based on any disability held by Rodriguez because, to discriminate based on a disability, CFD had to know of such a disability. Plaintiff's mere belief that CFD knew after she went off work between March 12-16 is not sufficient to create a triable issue. Plaintiff offers no evidence that the doctor's note attributed her absence to a disability sufficient to put CFD on notice.

But the associational disability discrimination (9th) cause of action is not predicated upon Rodriguez's disability but her association with disabled persons. In particular, Rodriguez's association with her mother and daughter. (FAC at ¶ 156.) Defendant CFD makes no argument that it did not engage in an adverse action because Rodriguez associated with and sought time-off related to her mother and daughter, or lacked knowledge about the mother and/or daughter.

3. No Protected Activity (12th & 16th Causes of Action)

Defendant CFD argues that Plaintiff engaged in no protected activity.

Rodriguez complained verbally to regional supervisor Andrade about Bermudez's style. She was told that it was a managerial tactic to get employees to work faster. UF #20. Although

Plaintiff states that this fact is disputed, her dispute merely re-affirms the fact. Rodriguez never accused Bermudez of discriminating against female employees in 2020 or 2021. UF #27.

Plaintiff disputes because she reported that Bermudez talked down to her and belittled her because of her gender. (See also AF #26-27.)

Rodriguez never complained about Cheung to CFD. UF #45. Plaintiff disputes because in December 2020, she complained to Molina about Cheung's conduct, including that she was extra friendly, hugged her from behind, got close to her face, and spanked her. (See also AF #50-51.) She also reported to Molina the alleged breast-rubbing incident by Cheung. AF #61.

Rodriguez made no written complaints about any employee at CFD before walking out. UF #59. Plaintiff disputes because she complained to Andrade about Bermudez, and to Molina about Cheung. She also complained to Andrade, Molina, and Wanda Perez about the workload and its effect on her. (See also AF #8, 56.) Plaintiff also reported an inappropriate comment made by Lazo to Molina. AF #107.

Rodriguez never raised claims that she was not being paid the correct amount, able to take rest breaks, receiving inaccurate wage statements, or any wage-and-hour claim. UF #103, 134, & 190-91. Plaintiff disputes to note that she did not receive her rest breaks and was not reimbursed. However, her dispute does not challenge the fact that she never complained to CFD about not being reimbursed (even if requested reimbursement) or lack of receiving rest breaks. Plaintiff never complained of not receiving a meal break. UF #133 (undisputed).

In construing these facts, the Court finds that Plaintiff engaged in protected activity under FEHA. She contends that she reported harassing conduct by Bermudez, Cheung, and Lazo. A triable issue exists as to whether those complaints were made to support a FEHA retaliation cause of action.

However, the facts and evidence establish no complaint was raised by Rodriguez concerning CFD violating the Labor Code to support a retaliation cause of action under Labor Code section 98.6. Rather, the facts and evidence are that Rodriguez never complained about alleged inability to take rest breaks, about her wage statements, about her meals, or lack of reimbursement. Although she may have sought reimbursement, that is different than filing a complaint about the failure to be reimbursed.

Lastly, Plaintiff has asserted retaliation under Labor Code sections 246.5, which concerns retaliation associated with sick days, and 1102.5, which concerns retaliation associated with illegal activity. Although CFD generally argues that Rodriguez did not engage in protected activity, it offers no facts and supporting evidence establishing Rodriguez did not use or attempt to use sick days (which she reportedly did, per her additional facts #65-78), or that she did not report any illegal activity.

4. Conclusion

Due to Defendant CFD failing in its burden of no associational discrimination or lack of protected activity in using/attempting to use sick days or report illegal activity, and triable issues existing on whether Rodriguez suffered an adverse action or engaged in FEHA protected activity, the Court DENIES summary adjudication of the 6th, 9th, and 12th causes of action, and the Labor Code sections 246.5 and 1102.5 counts under the 16th causes of action.

However, as Defendant lacked any knowledge of any disability held by Rodriguez, and Rodriguez never reported any Labor Code violations, it cannot have engaged in disability-based discrimination or Labor Code section 98.6 retaliation. Accordingly, the Court GRANTS

summary adjudication of the 7th-8th causes of action and Labor Code section 98.6 count under the 16th cause of action.³

B. 14th-15th Causes of Action: Failure to Accommodate & Interact

It is an unlawful business practice for “an employer ... to fail to engage in a timely, good faith, interactive process with the employee ... to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee ... with a known physical or mental disability or known medical condition.” (Gov. Code, § 12940, subd. (n).) This interactive process is mandatory and is triggered by an employee giving notice of disability and desire for accommodation. (*Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 261.) Nonetheless, the employee must identify a reasonable accommodation that is available during the interactive process. (*Shirvanyan v. Los Angeles Community College District* (2020) 59 Cal.App.5th 82, 96.)

Additionally, FEHA makes it an unlawful practice for an employer to fail to make reasonable accommodations to the known disability of an employee. (Gov. Code, § 12940, subd. (m)(1); *Avila v. Continental Airlines, Inc.* (2008) 165 Cal.App.4th 1237, 1252.) The plaintiff must prove that (a) he has a disability, (b) he could perform the essential duties of the job, and (c) the defendant failed to reasonably accommodate. (*Hernandez v. Rancho Santiago Community College District* (2018) 22 Cal.App.5th 1187, 1193-94.)

³ Summary adjudication may lie to a separate and distinct wrongful act even though combined with other wrongful acts alleged in the same cause of action. (*Mathieu v. Norrell Corp.* (2004) 115 Cal.App.4th 1174, 1188; *Lilienthal & Fowler v. Superior Court (Karr)* (1993) 12 Cal.App.4th 1848, 1854-55.) Here, separate statutory grounds for whistleblower retaliation would involve separate primary rights to allow adjudicating certain counts while not others within the 16th cause of action.

The FAC alleges CFD failed to accommodate and interact with Rodriguez concerning her request for time off in December 2020 and March 9-16, 2021 (§§ 242-43), and requests for time off to assist mother and daughter (§§ 241, 260).

As detailed above, the facts and evidence show that Defendant CFD was never informed of any disability (physical or mental) held by Rodriguez [UF #75, 77, & 80]. Plaintiff's belief otherwise [AF #10 & 113] is not sufficient to create a triable issue. Furthermore, Plaintiff concedes that she was given the time off in March 2021 per her doctor's note because of a panic attack, which she did not report, and returned with no restrictions [UF #81-82; AF #99-105, & 112]. The requests for time off work to assist in taking her mother to the airport and daughter to a dental appointment are not matters associated with any disability held by Rodriguez to warrant an accommodation and/or interaction.

Therefore, the Court GRANTS summary adjudication of the 14th-15th causes of action.

C. 10th-11th Causes of Action: Harassment

FEHA imposes liability on an employee and an employer for harassing an employee because of one's sex, gender, or disability. (Gov. Code, § 12940, subd. (j); *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707 [*Roby*].) A harassment claim "focuses on situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee." (*Roby, supra*, 47 Cal.4th at p. 706.) The employer is strictly liable if the harassment is by a supervisor, and liable if the harassment is by a non-supervisory employee or non-employee if it knows or should know of his conduct and fails to take immediate and appropriate corrective action. (Gov. Code, § 12940, subd. (j)(1).)

To establish harassment, a plaintiff needs to prove: (1) he belongs to a protected group, (2) he was subjected to unwelcome harassment, (3) based on his protected status, and (4) the

harassment was sufficiently severe or pervasive to alter the conditions of his employment. (*Jones v. Department of Corrections & Rehabilitation* (2007) 152 Cal.App.4th 1367, 1377.) The harassment must be both objectively and subjectively offensive. (*Lyle v. Warner Bros. Television Production* (2006) 38 Cal.4th 264, 284 [*Lyle*].) Sufficiently severe or pervasive means the plaintiff must show extremely offensive behavior or a repeated, routine, or generalized pattern of harassment. (*Id.* at pp. 283-84.) Whether the alleged harassment is sufficiently hostile and abusive is determined from the totality of the circumstances, which include (a) the frequency of the offensive conduct, (b) the severity of the offensive conduct, (c) whether it is physically threatening or humiliating, or mere offensive utterance, and (d) whether it interferes with the employee's work performance. (*Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 628.)

The 10th cause of action for harassment is predicated upon sexual harassment by Cheung, a co-worker. The 11th cause of action for harassment is predicated upon sex, gender, and disability harassment by Bermudez and Lazo, supervisors, and gender and disability harassment by Cheung, a co-worker.

Defendant CFD argues that it is not liable for any harassment by Cheung because of lack of knowledge, and no harassment by Cheung, Bermudez, and/or Lazo was severe or pervasive.

1. Co-Worker Cheung

Cheung is a hygienist. She never supervised Rodriguez. UF #44 (undisputed as phrased). Rodriguez interacted with Cheung two to three times per week. UF #110 (undisputed). Cheung would tell her that she is pretty. UF #111 (undisputed); AF #41. However, Cheung indicates that she tells many people that they are pretty, including patients. UF #112. Plaintiff does not dispute that such may be the case, but disputes the fact because it has no bearing on whether such constitutes harassment.

While wearing a face mask during Covid in 2020, Cheung got very close to Rodriguez, leaned into her, and brought her face close to Rodriguez's ear while in the presence of patients. Rodriguez would be wearing a mask, scrubs, and head covering. UF #113. Cheung indicates that she does this to whisper instructions to Rodriguez on the handling of the patient and coordination of tasks. UF #114. Plaintiff disputes these facts to clarify that while she was sitting on a stool diagnosing a patient, Cheung would lean down, hug her, and place her lips and mouth on or around her ear and neck. This occurred at least 3 times. (See also AF #42-44.)

In or about December 2020, Cheung slapped Rodriguez on the right butt-cheek in an open equipment area (sterilization room) and said, "I hope that's okay." UF #117 (undisputed); AF #45-47. Plaintiff adds that she was offended, shocked, and uncomfortable by this conduct. AF #48-49.

Finally, Rodriguez and Cheung were in an extremely small area where there was no door, and the radio was kept. While in this space, Cheung's upper torso contacted Rodriguez's back. The incident may have been on March 9, 2021. UF #124, 126, 128-29. Plaintiff disputes to clarify that in February 2021, she was in the doctor's office changing the music when Cheung came in and approached from behind. Cheung stood right behind her, leaned on her, and rubbed her breasts against her back. (See also AF #58-60.)

Rodriguez never complained to CFD about Cheung. She told a co-worker that Cheung was extra friendly, hugged her from behind, and smacked her bottom. UF #99, 119, & 121. Plaintiff disputes because she verbally complained to Molina about Cheung being extra friendly, hugging her from behind, getting close to her face, and spanking her. (See also AF #50.) Plaintiff also reported the alleged incident of Cheung's breast contacting Rodriguez's back to Molina. AF #61.

Viewing these facts together, even if Cheung downplays or denies the conduct occurred, Rodriguez contends the conduct did occur, and some of the incidents are different than how characterized by Cheung, *e.g.*, she did not just merely lean in and whisper to Rodriguez; Cheung hugged Rodriguez from behind and placed her mouth near and on Rodriguez's ear and neck. While each incident separately may not constitute severe or pervasive conduct, when the perceived sexual nature of the conduct is viewed in its totality, a jury could determine Cheung engaged in pervasive sexual harassment over the course of less than 6 months. It will be for the jury to determine the motivation and/or whether any contact was inadvertent or accidental.

A triable issue also exists as to whether a CFD supervisor was aware of the alleged sexual harassment. Now, Bermudez was Rodriguez's initial supervisor until he left in mid-February 2021 [UF #13, 16, & 21; AF #11], so the report to Molina in December 2020 was probably not to a supervisor. However, Molina became Rodriguez's supervisor after Bermudez left [UF #30; AF #22]. With the lack of clarity on dates of when Molina became Rodriguez's supervisor, it is possible the report to Molina about the breast touching incident was while she was Rodriguez's supervisor.

Nevertheless, the above shows merely a triable issue on the sexual harassment cause of action. None of the facts relate to disability or gender harassment. Rather, Cheung and CFD had no information that Rodriguez was suffering from a disability [UF #28-29 & 80]. If Cheung was not aware of any disability, then she could not engage in disability harassment.

2. Supervisor Bermudez

While Rodriguez was employed at CFD, Bermudez was her supervisor. UF #13 (undisputed). Bermudez stopped working at CFD and ceased supervising Rodriguez no later than February 12, 2021. UF #21. Plaintiff disputes the fact with an argument.

The regular staff at CFD from July 2020 to March 2021 were all female, except Bermudez. This included the office manager, two hygienists, assistant managers, dental assistants (other than Bermudez), and front office personnel. The regional manager was also female. UF #21-22, & 57. Plaintiff disputes to state an argument. She offers no actual dispute to the facts, *i.e.*, the CFD office was predominantly female.

Bermudez apparently stared at Rodriguez while she performed her tasks, would talk down to her, and overexplain things. He snapped his fingers at her to get her to move faster. Bermudez treated Rodriguez no differently than any other employee who worked slowly. UF #23, 33, & 102. Plaintiff disputes because Bermudez would stand and stare at her while she worked, needlessly overexplained things in front of patients, and tried to humiliate her in front of patients (*e.g.*, asked her in front of a patient why her patient's crowns were falling off). He would further snap his fingers at her. He told her that if he was not getting under her skin, then he was not doing his job right. (See also AF #12-21, 144.)

It is customary for a lead dental assistant and hygienist to discuss patient care issues privately and away from patients. Bermudez and Cheung would meet privately at times under their duties. UF #141-42. Plaintiff disputes because Bermudez and Cheung were overly friendly, kissed each other in front of employees, and would disappear together into a secluded area during work hours. This created an uncomfortable work environment for her. (See also AF #30-32.)

Under the above facts and supporting evidence, Bermudez's gender harassing conduct consisted of standing and staring at Rodriguez while she worked; needlessly overexplaining things; snapping his fingers at her; and talking down to, belittling, or humiliating her in front of patients. Yet the implication is Bermudez's conduct was done to get Rodriguez to work faster

and more efficiently. Nothing in the record indicates Bermudez engaged in this behavior because of Rodriguez's sex. His conduct would constitute him engaging in personnel, supervisory matters. (*Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 737 [*Doe v. CDCR*].) While supervisory conduct constitutes unlawful harassment if it conveys a hostile message [*Roby, supra*, 47 Cal.4th at pp. 706, 709], the record does not show Bermudez's actions could reasonably be understood to express gender bias.

Although the relationship between subordinate and supervisor may become contentious, frustrating, and/or upsetting, it does not equate to the supervisor engaging in harassing conduct. (*Doe v. CDCR, supra*, 43 Cal.App.5th at p. 737.) Similarly, even if a supervisor carries out duties negatively or maliciously, that does not equate to engaging in harassment based on a protected characteristic. (*Ibid.*)

This is the case here. Plaintiff Rodriguez may subjectively perceive Bermudez's conduct as harassing, but objectively, the facts and evidence indicate Bermudez engaged in a managerial style that may have been harsh, unprofessional, and contentious; yet, unrelated to any protected status held by Rodriguez.

On the other hand, the facts and evidence on Bermudez and Cheung purported kissing and stealing away could support sexual harassment by Bermudez creating a hostile work environment. Although Bermudez and Cheung deny such conduct, Rodriguez claims it did occur. Who to believe is a matter for a jury.

Finally, as detailed above, no disability harassment could occur because Bermudez did not know about any disability held by Rodriguez [UF #28-29 & 80].

3. Supervisor Lazo

Lazo called Rodriguez "Macetona," which in Spanish means hard-headed. UF #104-05; AF #97. Plaintiff does not dispute the fact, but does add that the statement was made in front of

patients after she asked a question. Due to feeling embarrassed and uncomfortable from the incident, Rodriguez had a panic attack, which caused her to go to the emergency room (See also AF #98-100.) Plaintiff characterizes Lazo's conduct as bullying. AF #111.

Similar to Rodriguez's behavior, Lazo calling Rodriguez hard-headed, even if it subjectively caused Rodriguez distress, is not objectively severe or pervasive. It is further not demonstrated that the comment was made because Rodriguez was female.

4. Conclusion

Triable issues exist on whether CFD via a supervisor was aware of Cheung's alleged harassment, and whether Cheung's behavior and Bermudez and Cheung's joint behavior constituted sexual harassment. However, the facts and evidence establish that neither Cheung, Bermudez, nor Lazo engaged in any disability or gender harassment.

Therefore, the Court DENIES summary adjudication of the 10th cause of action and the sexual harassment count within the 11th cause of action, but GRANTS summary adjudication of the gender and disability harassment counts within the 11th cause of action.

D. 13th & 22nd Causes of Action: Failure to Prevent & Wrongful Termination

For failure to prevent to exist, an underlying claim of discrimination, harassment, and/or retaliation must survive. (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1315-16; *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289.) Similarly, when a wrongful termination claim is predicated upon FEHA (discrimination and retaliation) theories, it survives if the FEHA theories survive. (*Wilkin v. Community Hospital of the Monterey Peninsula* (2021) 71 Cal.App.5th 806, 831.)

Here, as sexual discrimination, sexual harassment, and retaliation have survived, the derivative claims of failure to prevent and wrongful termination survive. Therefore, the Court DENIES summary adjudication of the 13th and 22nd causes of action.

E. 17th Cause of Action: Negligent Hiring/Retention/Supervision

An employer may be liable for negligent hiring, retention, and/or supervision if he knows or should know an employee is unfit, and because of the unfitness, the employee creates a risk, with that risk materializing. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054; *Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 843.) To establish liability, the plaintiff needs to prove (a) that the employee was unfit or incompetent to perform the work for which he was hired, (b) that the employer knew or should have known that the employee was unfit or incompetent and that this unfitness or incompetence created a particular risk to others, (c) that the employee's unfitness or incompetence harmed the plaintiff, and (d) that the employer's negligence in hiring, retaining, or supervising the employee was a substantial factor in causing the plaintiff's harm. (CACI 426.)

The FAC alleges that CFD was negligent in its hiring, retaining, and supervision of Cheung (§§ 290-292.)

Defendant argues that it lacked knowledge of any improper conduct by Cheung. However, as analyzed under the harassment cause of action, a triable issue exists on whether CFD was informed via information provided to Molina about Cheung's conduct. It is further a triable issue of whether, when the reporting occurred to Molina, she was a supervisor. Therefore, the Court DENIES summary adjudication of the 17th cause of action.

F. 1st-2nd Causes of Action: Denied Meals and Rest Breaks

Labor Code section 226.7, subdivision (b), states an employer "shall not require any employee to work during any meal or rest or recovery period mandated by an applicable statute, or applicable regulation, standard, or order of the Industrial Welfare Commission...." All employees must be authorized and permitted to take 10-minute rest breaks for shifts 3.5 to 6 hours in length, 20 minutes for shifts of more than 6 hours and up to 10 hours, and 30 minutes

for shifts of more than 10 hours and up to 14 hours. (*Brinker Rest. Corp. v. Superior Court (Hohnbaum)* (2012) 53 Cal.4th 1004, 1028-29, 1031, 1033-34 [*Brinker*]; Cal. Code of Reg., tit. 8, § 11040, subd. (12)(A).) Similarly, all employees must be relieved to take a minimum of a 30-minute meal period if work a shift of more than 5 hours with the meal break occurring no later than the end of the fifth hour of work, and a second 30-minute meal period if work a shift of more than 10 hours that must be taken no later than the end of the tenth hour of work. (Labor Code, § 512; *Brinker, supra*, 53 Cal.4th at pp. 1034, 1036, 1040, 1041-42; Cal. Code of Reg., tit. 8, § 11040, subd. (11)(A)-(B).)

Here, Rodriguez testified that she received compliant meal breaks, which exceeded the minimum time required. UF #187 (undisputed); Rodriguez's Depo. at pp. 178:15-179:18, 400:9-20 [Def's Exh. A].

CFD provided employees with the ability to take rest breaks. It makes it known that employees may take breaks. However, it did not force employees to take their rest breaks. UF #186 & 192-93. Rodriguez had the ability to go to her car or the breakroom for a rest break. UF #188. Rodriguez never complained about the inability to take her breaks. UF #190.

Plaintiff disputes the above facts because, during her employment, she was never provided a rest break. She notes that no one took rest breaks. She testified to the following: She and other employees never received a rest break; there was no ability to take rest breaks; the hour lunch was to cover for the untaken 10-minute rest breaks; she was not aware of any policy to take rest breaks; and she understood that CFD was not required to tell her when to go on her rest break [Rodriguez's Depo. at pp. 179:19-180:16, 400:18-20]. (*See also* AF #166, 168.)

CFD's regional manager testified that rest breaks were self-administered, and she believed employees took their rest breaks. AF #201-202.

In construing the facts and evidence, CFD cannot be liable for failure to provide meals when Rodriguez admits that she received her meals. On the other hand, a triable issue exists on whether Rodriguez could receive her rest breaks. Although CFD contends that rest breaks were permissible and self-scheduled, the evidence creates a triable issue as to whether this policy was communicated to Rodriguez and whether her workload made taking breaks impossible.

Therefore, the Court DENIES summary adjudication of the 1st cause of action but GRANTS summary adjudication of the 2nd cause of action.

G. 3rd Cause of Action: Waiting Time Penalties

Although Defendant CFD's Notice of Motion lists seeking adjudication of the 3rd cause of action, it offers no argument within its memorandum of points and authorities for why the cause of action cannot be maintained against it.

Furthermore, the premium pay for a missed rest break is a wage that, if not timely paid, can support the waiting time penalty under Labor Code section 203. (*Naranjo v. Spectrum Security Services, Inc.* (2022) 13 Cal.5th 93, 106-10, 117 [*Naranjo*].) "[A]ny unpaid premium pay must be paid promptly once an employee leaves the job. And when an employer willfully fails to comply with this obligation, making penalties available serves the purpose underlying Labor Code section 203...." (*Id.* at p. 110.)

As a triable issue exists on the denied rest break, it follows that waiting time penalties could be appropriate for the failure to pay the premium one hour for each denied rest break.

Therefore, the Court DENIES summary adjudication of the 3rd cause of action.

H. 4th Cause of Action: Failure to Reimburse

An employee shall be reimbursed for all necessary expenditures or losses incurred as a consequence of his duties. (Lab. Code, § 2802, subd. (a).) An employer is liable for non-reimbursement if the employee shows he incurred expenditures in direct consequence of

discharging his duties, and the expenditure was necessary and reasonable. (*Gallano v. Burlington Coat Factory of California, LLC* (2021) 67 Cal.App.5th 953, 960.)

Plaintiff Rodriguez never submitted any expenses in writing or for reimbursement. UF #195-196 & 198. Rodriguez claims that she incurred a \$100 expense for a Covid test that she voluntarily took in 2020 in lieu of missing work. However, CFD did not require her to take the Covid test. UF #197 & 199-200.

Plaintiff disputes the facts above. She contends that CFD required her to take the Covid test before she could return to work. She further orally requested reimbursement for the cost from Lazo, Andrade, and Perez. They denied her request. (See also AF #80-81 & 83-91.) Plaintiff also adds that she incurred mileage for traveling to a different dental office to perform work for CFD, at its demand. She was not reimbursed. AF #170, 173, 175-176, & 205-06.

Based on the facts and submitted evidence, Plaintiff incurred expenses, *i.e.*, mileage to travel to another location and the cost to take a Covid test. Although CFD may dispute that the Covid test was required or necessary for Rodriguez's employment, it offers nothing to establish Plaintiff would not be entitled to reimbursement by CFD for her travel to other locations at its request. Furthermore, it is a disputed issue on whether the Covid test was a reasonable and necessary, and incurred business expense by Rodriguez.

Therefore, the Court DENIES summary adjudication of the 4th cause of action.

I. 5th Cause of Action: Inaccurate Wage Statements

Labor Code section 226, subdivision (a), provides a list of nine items that must be provided on a wage statement issued to each employee, which includes reporting each payment of wages and premium wages. (*Naranjo, supra*, 13 Cal.5th at pp. 119, 121 ["In sum, we hold that an employer's obligation under Labor Code section 226 to report wages earned includes an obligation to report premium pay for missed breaks."].) If an employee suffers injury because of

a “knowing and intentional failure by an employer to comply with subdivision (a) is entitled to recover the greater of all actual damages” or a penalty. (Lab. Code, § 226, subd. (e)(1).) An employee is deemed to suffer injury if the employer fails to provide accurate and complete information on the wage statement, and the employee cannot promptly and easily determine the amount of gross or net wages paid. (Lab. Code, § 226, subd. (e)(2)(B)(i).) A knowing and intentional failure does not include an isolated and unintentional payroll error due to a clerical or inadvertent mistake. (Lab. Code, § 226, subd. (e)(3).

There is no evidence of injury to Rodriguez by the failure to keep time or payroll statements. Rodriguez was provided her wage statements upon request. UF #202-03. Plaintiff disputes because rest breaks were denied, and the premium wage owed for such denial was not included in her wage statements.

Here, as a derivative-based claim, the unpaid premium wage for a denied rest break would not have been included in any issued wage statement. Injury may arise from CFD’s knowing failure to provide a complete wage statement. If CFD knew workload demands systematically prevented employees from taking rest breaks, its subsequent failure to pay and record premium wages on wage statements constitutes a knowing and intentional violation.

Therefore, the Court DENIES summary adjudication of the 5th cause of action.

J. 21st Cause of Action: UCL

The UCL prohibits any unlawful, unfair, or fraudulent business practice. (Bus. & Proc. Code, § 17200.) The unlawful prong arises when alleging the violation of any federal, state, or local law. (*Munson v. Del Taco, Inc.* (2009) 46 Cal.4th 661, 676.)

The FAC alleges that the UCL’s unlawful prong was violated by Defendant CFD’s failure to comply with the Labor Code (§§ 342-43, 345).

The UCL is essentially derivative of the wage-and-hour causes of action, and as the 1st and 3rd-5th causes of action survive, then so does the UCL cause of action.

Therefore, the Court DENIES summary adjudication of the 21st cause of action.

XIII. CONCLUSION

4. Defendant CFD's Motion for Summary Judgment is DENIED for the same reasons for denying summary adjudication of the 1st, 3rd-6th, 9th-13th, 16th-17th, and 21st-22nd causes of action;

5. Defendant CFD's Motion for Summary Adjudication is GRANTED as to the following causes of action:

a. 2nd cause of action: Plaintiff received all her meals [UF #187 and cited evidence: Rodriguez's Deposition];

b. 7th-8th causes of action: Defendant CFD lacked knowledge of any disability held by Rodriguez, and with lack of knowledge, it could not have engaged in disability-based discrimination [UF #28-29, 77, & 80-82; AF #10, 99-105, & 112-13; and responses thereto: Rodriguez's Deposition; Andrade, Lazo, Bermudez, & Rodriguez's Declarations; and Discovery Responses (Def's Exh. C; Pl's Exh. M)];

c. 11th causes of action, gender and disability harassment counts: Cheung, Bermudez, and Lazo did not engage in gender or disability harassment when aware of no disability held by Rodriguez, and engaged in conduct that were managerial in nature and/or unrelated to gender [UF #13, 21-23, 28-29, 33, 57, 77, 80, 102, & 104-05; AF #12-21, 97, 111, & 144; and cited evidence: Rodriguez's Deposition; Andrade, Lazo, Cheung, Bermudez & Rodriguez's Declarations; and Discovery Responses (Def's Exh. C; Pl's Exh. M)];

d. 14th-15th causes of action: Summary adjudication is granted because CFD had no knowledge of any disability, fully granted Plaintiff's requested medical leave following her panic attack, and had no statutory duty to accommodate time off requested solely to assist family members. [UF #28-29, 77, & 80-82; AF #10, 65-76, 99-105, & 112-13; and responses

thereto: Rodriguez's Deposition; Andrade, Lazo, Bermudez, & Rodriguez's Declarations; and Discovery Responses (Def's Exh. C; Pl's Exh. M)]; and

e. 16th cause of action, Labor Code section 98.6 count: Plaintiff Rodriguez never complained about any denied meals and rest breaks, inaccurate wage statements, failure to reimburse, or other Labor Code violations, and thus, did not engage in protected activity covered by Labor Code section 98.6 [UF #103, 133-34, & 190-91, responses thereto, and cited evidence: Rodriguez's Deposition; and Lazo & Andrade's Declarations];

6. Defendant CFD's Motion for Summary Adjudication is DENIED as to the following causes of action:

a. 1st cause of action: Triable issues exist on whether Defendant properly communicated the right to rest breaks, and whether the workload permitted rest breaks [UF #186, 188, 190, & 192-93; AF #166, 168, & 201-02: Rodriguez & Andrade's Depositions; Andrade & Lazo's Declarations; and Discovery Responses (Def's Exh. C; Pl's Exh. M)];

b. 3rd cause of action: Defendant fails to offer any analysis or facts for why the waiting time penalty cause of action is deficient, and, in any case, it survives because the denied rest break cause of action survives;

c. 4th cause of action: Defendant fails to negate that it had an obligation to reimburse for mileage for times Plaintiff required to work at a different location, and triable issues exist on whether the Covid test was necessary business expenses, and thus, subject to reimbursement [UF #195-200; AF #80-81, 83-91, 170, 173, 175-76, & 205-06; and cited evidence: Rodriguez & Andrade's Depositions; Andrade & Lazo's Declarations; and Discovery Responses (Def's Exh. C; Pl's Exh. M)];

d. 5th cause of action: Triable issue exists on whether the failure to pay and include in the wage statement the premium pay owed for a denied rest break was knowing and caused injury [UF #202-03, responses thereto, and cited evidence: Rodriguez's Deposition; and Discovery Responses (Def's Exhs. C & F; Pl's Exh. M)];

e. 6th, 9th, & 12th causes of action, & 16th causes of action, Labor Code sections 246.5 and 1102.5 counts: Defendant fails to establish no knowledge of Rodriguez's associational-disability, Defendant fails to establish Plaintiff Rodriguez did not use or attempt to use sick leave or report any illegal conduct, and triable issues exist on whether Rodriguez suffered adverse employment action via reprimands and constructive discharge, and reported harassment and intolerable working conditions [UF #2-3, 7, 9, 18, 20, 27-29, 30-31, 38, 45, 50, & 76-82; AF #8, 26-27, 50-51, 56, 61, 65-76, 107, 120-22, 124-29, 132, 149-65, & 191-92; cited evidence: Rodriguez & Andrade's Depositions; Andrade, Lazo, Bermudez, & Rodriguez's Declarations; Reprimands (Pl's Exhs. H-I); and Discovery Responses (Def's Exh. C; Pl's Exh. M)];

f. 10th cause of action & 11th causes of action, sexual harassment count: Triable issues exist on whether Defendant Cheung's alleged conduct toward Rodriguez, and Defendants Bermudez and Cheung's conduct with each other constituted sexual harassment, and whether CFD was informed of Defendant Cheung's harassing conduct [UF #13, 16, 21, 44, 99, 110-14, 117, 119, 121, 124, 126, & 141-42; AF #11, 22, 30-32, 42-50, & 58-61; and cited evidence: Rodriguez's Deposition; Andrade, Lazo, Cheung, Bermudez & Rodriguez's Declarations; and Discovery Responses (Def's Exh. C; Pl's Exh. M)];

g. 13th & 22nd causes of action: As triable issues exist under the discrimination, harassment, and/or retaliation causes of action, the derivative claims for failure to prevent and wrongful discharge also remain;

h. 17th cause of action: Triable issues exist on whether CFD was aware of Defendant Cheung's alleged bad behavior [UF #13, 16, 21-22, 30, 99, 119, & 121; AF #11, 50, & 61; Rodriguez's Deposition; Andrade, Lazo, Cheung, & Rodriguez's Declarations; and Discovery Responses (Def's Exh. C; Pl's Exh. M)]; and

///

i. 21st cause of action: As triable issues exist on the wage-and-hour claims, then a triable issue exists on whether Defendant engaged in unlawful business practices.⁴

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

Tentative – NOT FINAL

⁴ Rulings on evidentiary objections are set forth above in Section II.